

2:00 PM

LINE 3

24-CIV-07133

GRACE COLLEEN DODD, ET AL. VS. THE ENSIGN GROUP, INC., ET AL.

GRACE COLLEEN DODD
THE ENSIGN GROUP, INC.

LESLEY ANN CLEMENT
JOHN L SUPPLE

DEFENDANTS' MOTION FOR PROTECTIVE ORDER REGARDING PLAINTIFFS' NOTICE OF DEPOSITION OF THE ENSIGN GROUP, INC.'S PERSON MOST QUALIFIED RE: CHANGE OF OWNERSHIP AND REQUEST FOR PRODUCTION OF DOCUMENTS

TENTATIVE RULING:

Defendants The Ensign Group, Inc., Ensign Services, Inc., Flagstone Healthcare North LLC, and Mussel Rock Health Care Inc., d/b/a Pacifica Nursing & Rehabilitation Center (hereinafter Defendants) motion for a protective order related to plaintiffs' deposition of Defendants' Person Most Qualified (hereinafter PMQ) Re: Change of Ownership and Request for Production of Documents, pursuant to Code of Civil Procedure section 2025.420 is DENIED.

The instant motion is brought on the grounds that the PMQ deposition seeks testimony and documents on subject matters that are neither relevant nor reasonably calculated to lead to the discovery of admissible evidence and which significantly intrude upon Defendants' trade secrets. Moreover, there are far less intrusive means for plaintiffs to pursue and obtain the information and documents that they seek.

Plaintiff opposes the motion, contending that when defendants purchased Pacifica Nursing Center in 2023 and changed the business model the care provided to patients sharply declined because "Ensign looks for nursing homes where it can increase Medicare patients and impose its understaffing model to increase profits to its management staff, executive staff, and shareholders." (Opp. p. 3.) The deposition of the PMQ is directly relevant to Plaintiffs' elder abuse and corporate liability claims and defendant has failed to establish good cause for a protective order or substantiate its trade secret objections.

A. Legal Standard

For good cause shown, a court may order a protective order to limit the deposition of a party, deponent or other natural person or organization, including that trade secrets will not be disclosed. (Code Civ. Proc. § 2025.420.)

The court refers to the parties to its tentative ruling for the motion to compel for the background facts and the analysis. For the same reasons that the Court finds that the motion to compel is granted, the court denies the motion for protective order. The same limitations and deadlines stated in the motion to compel tentative ruling apply here.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 4

24-CLJ-01851

TD BANK USA, N.A VS. KATHREEN IRIS MAYE S. MENDOZA

TD BANK USA, N.A
KATHREEN IRIS MAYE S. MENDOZA

ALEXANDER BALZER CARR
PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff TD Bank, N.A.’ motion for order that matters in request for admission of truth of facts be deemed admitted, set not 1 for failure to provide proper notice to defendant of the hearing.

In the notice of motion, plaintiff put the date of July 29, 2026 as the hearing date. Then the clerk’s office changed the hearing date to September 8, 2026. The court file shows a proof of service filed and served on June 5, 2026 of the motion. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

Since plaintiff states it is submitting on the papers without an appearance pursuant to California Rules of Court, rule 3.1304(c), plaintiff does not have an opportunity to show that proper notice was provided.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
